



February 20th 2018 Delaware County Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=8Tk1AVYEPC
Publication Date	2018-02-21T15:29:01Z
Target Category	delaware_county

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Delaware County Commissioners Meeting Summary

Meeting Date: Tuesday, February 20, 2018

Convened Time: 9:07 AM

1. Pre-Meeting Hearings & Committee Work Sessions

The transcript indicates that public hearings were conducted immediately following the call to order as part of the regular meeting agenda rather than a separate pre-meeting session.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer opened the Delaware County Commissioners meeting on Tuesday, February 20, 2018, at 9:07 AM, instructing attendees to stand for the Pledge of Allegiance.
- **Attendance:**
 - **Present:** Mr. Henry, Mr. Regan, Mr. King (Mr. Burke arrived approximately 10 minutes late).
 - **Absent:** None noted initially.

- **Presiding Officer:** Mr. King (implied by leadership of proceedings).
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance 00:00:15.
 - **Approval of Minutes:**
 - 00:05:05 Consideration of the minutes from the February 5, 2018 meeting.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. Henry: Yes, Mr. Regan: Yes, Mr. King: Yes).
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4. Substantive Business & Board Action

00:00:53 Public Hearings: Traffic Ordinance & Non-Profit Tax Certificates

- **Item Identifier & Title:** Public Hearings for Traffic Regulations and Non-Profit Tax Certificates.
- **Sponsor / Presenter:** County staff / Commissioners.
- **Deliberation Summary:** Discussion of advertised four-way stops (Old Granville Road and Blacksmith Road; County Road 700 South). Additional discussion regarding tree issues near Old Granville/Blacksmith roads. Public hearings were also held for non-profit tax sale certificates at 1810 South Liberty Street and 700 West County Road.
- **Action & Vote Disposition:** Motion and second to close the public hearing. Passed by roll call vote (Mr. Regan: Yes, Mr. Henry: Yes, Mr. King: Yes) 00:03:56.

00:04:13 Tabled Business: Ball Comprehensive County Financial Plan

- **Item Identifier & Title:** Removal from Table / Approval of Ball Comprehensive County Financial Plan.
- **Sponsor / Presenter:** Commissioners.
- **Deliberation Summary:** Proposal to bring back the financial plan previously reviewed by financial analysts to evaluate county finances and identify available funds for vehicle purchases.
- **Action & Vote Disposition:** Removed from table and approved by roll call vote (Mr. Regan: Yes, Mr. Henry: Yes, Mr. King: Yes) 00:04:46.

00:06:04 Highway Department Material & Paving Bids

- **Item Identifier & Title:** Annual Highway Material and Paving Project Bids.
- **Sponsor / Presenter:** Highway Department / Tom.
- **Deliberation Summary:** Opening and reading of annual material bids (gasoline, diesel, liquid asphalt, asphalt mixes, and stone) from suppliers including Access LLC, Klinke

Group, Asphalt Materials, Marathon Petroleum, Millstone, EMV Paving, and Irving Materials. Paving project totals were read:

- *Brooks Construction Company (Fort Wayne)*: \$784,859.00 00:12:53
- *Milestone (Portland/Lafayette)*: \$825,400.00 00:13:04
- *EMV Paving (Muncie)*: \$804,485.88 00:14:10
- **Action & Vote Disposition:** Motion to take all bids under advisement for staff tabulation. Approved by roll call vote 00:14:55.

00:15:12 Contracts & Agreements: SRI Tax Sale Services Addendum

- **Item Identifier & Title:** Addendum to Master Services Agreement with SRI (Commissioners' Certificate Sales).
- **Sponsor / Presenter:** Janet Kessler, Tax Deputy, Auditor's Office 00:15:20.
- **Deliberation Summary:** Addendum details responsibilities, hours, and a 15% fee of amounts collected for properties sold at the commissioners' certificate sale. Staff noted it is standard and similar to past agreements.
- **Action & Vote Disposition:** Approved by roll call vote (Mr. Regan: Yes, Mr. Henry: Yes, Mr. King: Yes) 00:15:58.

00:16:12 Ordinances for First Reading: Ordinance No. 2018-003 (Traffic Regulations)

- **Item Identifier & Title:** 00:16:12 Ordinance No. 2018-003: An Ordinance Regulating Traffic on Certain Public Streets in Delaware County (Four-Way Stops).
- **Sponsor / Presenter:** Commissioners.
- **Deliberation Summary:** Introduction of the ordinance establishing four-way stops at Old Granville Road/Blacksmith Road and County Road 700 South.
- **Action & Vote Disposition:** Introduced and approved on first reading by roll call vote (Mr. Henry: Yes, Mr. Regan: Yes, Mr. King: Yes) 00:16:30.

00:16:46 Resolution No. 2018-008: Tax Sale Certificate Assignment (Eco Rehab)

- **Item Identifier & Title:** 00:16:46 Resolution No. 2018-008: Final Determination of Tax Sale Certificate Assignment to Eco Rehab (1810 South Liberty Street).
- **Sponsor / Presenter:** Commissioners / Staff.
- **Deliberation Summary:** Assigns tax sale certificate to Eco Rehab to rehab a vacant home into an energy-efficient house to be transferred to Muncie Mission for transitional housing.
- **Action & Vote Disposition:** Adopted by roll call vote (Mr. Regan: Yes, Mr. Henry: Yes, Mr. King: Yes) 00:17:20.

00:17:28 Resolution No. 2018-009: Tax Sale Certificate Assignment (ECI Regional Planning District)

- **Item Identifier & Title:** 00:17:28 Resolution No. 2018-009: Final Determination of Tax Sale Certificate Assignment to East Central Indiana Regional Planning District (700 West Division Road / Old Hotel site).
- **Sponsor / Presenter:** Commissioners / Brad Bookout (Economic Development).
- **Deliberation Summary:** Assigns tax certificate to clean up the property; noted that a local company/prospect is interested.
- **Action & Vote Disposition:** Adopted by roll call vote (Mr. Henry: Yes, Mr. Regan: Yes, Mr. King: Yes) 00:18:09.

00:25:48 Opiate Litigation Legal Agreement

- **Item Identifier & Title:** 00:25:48 Removal from Table and Approval of Opiate Litigation Agreement.
- **Sponsor / Presenter:** County Attorney / Commissioners.
- **Deliberation Summary:** Discussion of proposals from three law firms regarding county participation in opiate litigation. The board recommended selecting the law firm Cohen & Malad.
- **Action & Vote Disposition:** Taken off the table and approved by roll call vote (Ms. Regan: Yes, Mr. Henry: Yes, Mr. King: Yes) 00:26:44.

00:26:51 Eaton Land Disposition Process

- **Item Identifier & Title:** 00:26:51 Disposal of County-Owned Land Strip in Eaton, Indiana.
- **Sponsor / Presenter:** County Attorney / Commissioners.
- **Deliberation Summary:** The county was approached regarding an adjacent strip of land acquired via tax sale years ago. Board agreed to follow statutory bidding processes and offer it to adjacent property owners.
- **Action & Vote Disposition:** Motion to proceed with the statutory process approved by roll call vote (Mr. Henry: Yes, Ms. Regan: Yes, Mr. King: Yes) 00:28:02.

00:28:36 Payment of Claims

- **Item Identifier & Title:** 00:28:36 Payment of Claims.
- **Sponsor / Presenter:** Commissioners / Auditor's Office.
- **Deliberation Summary:** Review of claims totaling \$883,201.22.
- **Action & Vote Disposition:** Approved by roll call vote (Mr. Henry: Yes, Mr. Regan: Yes, Mr. King: Yes) 00:28:45.

00:34:31 Moratorium on Building Permits (CAFO Discussion)

- **Item Identifier & Title:** 00:34:31 Temporary Moratorium on Building Permits Related to Proposed CAFO.
- **Sponsor / Presenter:** Commissioners / Perry Evans.

- **Deliberation Summary:** In response to community concerns regarding a proposed CAFO north of Eaton, the board addressed whether to halt building permits temporarily pending a public meeting.
- **Item-Specific Public Input:** Perry Evans requested a moratorium so permits are not issued before the scheduled community meeting.
- **Action & Vote Disposition:** Motion to halt building permits connected with the CAFO until further review was approved by roll call vote (Mr. Henry: Yes, Ms. Regan: Yes, Mr. King: Yes) [00:34:58](#).

[00:35:35](#) Community Corrections SmartLink GPS Program Amendment

- **Item Identifier & Title:** [00:35:35](#) Community Corrections 90-Day Contract Amendment for SmartLink Monitoring.
- **Sponsor / Presenter:** Derek Bailey, Detention / Community Corrections Supervisor [00:35:45](#).
- **Deliberation Summary:** Proposal for a 90-day trial of the SmartLink program for 15 pre-trial GPS clients, reducing monitoring costs from \$14 to \$10 per client per day as a step-down incentive program. Supported by local judges and prosecutors.
- **Action & Vote Disposition:** Motion to approve the 90-day contract amendment approved by roll call vote (Mr. Regan: Yes, Mr. Henry: Yes, Mr. King: Yes) [00:37:39](#).

5. Open Public Comment / Citizen Forum

- [00:18:19](#) **Fred Kasher (Shamrock Lakes):** Addressed the proposed CAFO project near Eaton. Expressed concern that nearby residents within 2,600 feet were not properly notified due to state radius rules, raised environmental and elevation concerns regarding nearby creeks and sewage plants, and suggested requiring a \$20 million bond for non-compliance.
- [00:29:02](#) **Amy Winton (Muncie Action Plan):** Invited commissioners and the public to the 3rd annual Muncie Neighborhoods Idea Conference on March 3rd at Ball State, highlighting sessions on leadership training, grant writing, and a panel discussion addressing the county's abandoned property/land bank problem.
- [00:32:07](#) **Perry Evans (1270 North):** Thanked commissioners for setting up a special community meeting regarding the CAFO project, emphasized time-sensitive concerns, and requested a moratorium on building permits to prevent permits from being issued before the March 8 meeting.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**

- **Special Community Meeting:** Scheduled for **March 8, 2018, at 6:00 PM** at the **Delaware County Fairgrounds (Harlan Hall)** to discuss the proposed CAFO project near Eaton. Department heads, zoning officials, the county surveyor, and the county attorney are requested to attend.
 - **Flood Preparations:** John Cuttino and Emergency Management (Jason Rogers) reported that sandbags are available at EMS Station 3 and the fairgrounds (self-fill), with additional supplies coordinated through city stations.
 - **Adjournment:**
 - Motion to recess/adjourn made and approved by voice vote **00:38:52**.
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